

FR 21407/23

IN THE HIGH COURT OF KARNATAKA, AT BENGALURU

PRESENTATION FORM

W.P.No. /2023 (GM-RESPONDENT)

Serial No. _____
Advocate
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Kodagu District
Between

M/s. Raja Agency

And
The Principal Secretary,
Government of India And others

Sl. No.	Description of Paper Presented	Court Fee Affixed On the paper	
1.	On Memorandum of Writ Petition		
2.	On Documents		
3.	On Vakalath		
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Advocate for **Petitioner**

Appellant/ Respondent

Advocate's Clerk

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IN THE HIGH COURT OF KARNATAKA AT-BENGALURU

Writ Petition No.

/2023 (GM-RES)

BETWEEN:

M/s. Raja Agency

... Petitioners

AND:

The Principal Secretary,
Government of India,
And others

... Respondents

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Bengaluru

Date: 11-09-2023

Advocate for Petitioner
(Prabhugoud.B.Tumbigi)

①

IN THE HIGH COURT OF KARNATAKA AT-BENGALURU

Writ Petition No.

/ 2023 (GM-RES)

BETWEEN:

M/s. Raja Agency

... Petitioners

AND:

The Principal Secretary,
Government of India,
And others

... Respondents

SYNOPSIS

SL.No.	Date	Particulars
1	2012-13	The petitioner had supplied Agricultural Sprinkler Equipment to the selected formers of the Karnataka State Government under subsidy scheme, in the Kodagu District amounting to Rs.38,45,900/-. Out of which the Government of Karnataka has paid Rs. 14,98,962/- and the remaining balance of Rs.20,51,128/- to be paid by the Government of India as per the say of the authorities of the Government of Karnataka.
2	2013-14	The petitioner had supplied Agricultural Sprinkler Equipment to the selected formers of the Karnataka State Government under subsidy scheme, in the Kodagu District amounting to Rs.15,59,894/-. Out of which the Government of Karnataka has paid Rs. 8,66,600/- and the remaining balance of Rs.6,93,294/- to be paid by the Government of India as per the say of the authorities of the Government of Karnataka.
3	11-06-2014	The authorities of the government of Karnataka have in their internal communication shown share amount of the Government of India for due release to the Kodagu District.

4	04-03-2016	The authorities of the government of Karnataka have in their internal communication shown share amount of the Government of India for due release to the Kodagu District.
5	30-12-2016	The petitioner many times requested the respondents seeking release of due amount and again approached the respondent authorities with a detailed representation requesting them to pay the due amount of Rs.26,90,046/- towards the supplied Agricultural Sprinkler Equipment to the selected formers of the Karnataka State Government under subsidy scheme.
6	13-01-2017	That, authorities of the respondent had issued copy to the petitioner showing that the respondent authorities have taking steps for releasing the due amount to the petitioner and in this regard they called for the records from the below officials.
7	01-03-2017	The authorities of the government of Karnataka have in their internal communication shown share amount of the Government of India for due release to the Kodagu District.
8	28-04-2023	The petitioner many times requested the respondents seeking release of due amount for having supplied the Agricultural Sprinkler Equipment and again approached the respondent authorities with a detailed representation requesting them to pay the due amount of Rs.27,44,422/- towards the supplied Agricultural Sprinkler Equipment to the selected formers of the Karnataka State Government under subsidy scheme.
9	05-06-2023	Since the authorities of Government of Karnataka pointing fingers the Government of India stating

		their part of the amount was not released as such the petitioner approached all the respondents seeking release of due amount of Rs.27,44,422/- towards the supplied Agricultural Sprinkler Equipment to the selected formers of the Karnataka State Government under subsidy scheme.
10	10-07-2023	That, the respondent have again for the representations of the petitioner issued, once again the same communication, which was issued to the petitioner in the year 2017 stating still they asked their below authorities to submit report for releasing due amount.

BRIEF FACTS OF THE CASE

That, the petitioner as per the direction of the Government of Karnataka, supplied the Agricultural Sprinkler Equipment to the selected formers of the state at Kodagu District, under subsidy scheme, amounting to Rs.51,09,989/- for the year 2012-13 and 2013-14 . Out of which, for the said years the Government of Karnataka paid Rs.23,65,562/- and due payable to the petitioner of Rs.27,44,422/-. The respondent No.2 to 7 stated that, the due amount is the part of the share amount of the Government of India.

That the petitioner patently waited all these years and the respondent authorities are sit over the matter without releasing the due amount payable to the petitioner for having supplied the Agricultural Sprinkler Equipment to the selected formers of the Kodagu District. Hence petitioner seeking direction to the respondent authorities to release due amount of Rs.27,44,422/- with interest, in the interest of justice.

Bengaluru
Date:11-09-2023

Advocate for Petitioner
(Prabhugoud.B.Tumbigi)

IN THE HIGH COURT OF KARNATAKA AT-BENGALURU

(ORIGINAL JURISDICTION)

Writ Petition No.

/ 2023 (GM-RES)

BETWEEN:

M/s. Raja Agency,
K2, M.G. Road,
Somwarpet,
Kodagu-571236
Rep, by Sole Proprietor,
Sri. M.C.Uthaiah,

... Petitioners

AND:

1. The Principal Secretary,
Government of India,
Sansad Marg, Gokul Nagar,
Janpath, Connaught Place,
New Delhi-110001.

2. The Principal Secretary,
Government of India,
Department of Agriculture,
Formers Welfare, Sansad Marg,
Gokul Nagar, Janpath, Connaught Place,
New Delhi-110001.

3. The Principal Secretary,
Department of Agriculture,
Vidhana Soudh,
Bengaluru-560 001

4. The Director of Agriculture (HRD),
Sheshadri Road, K.R. Circle,
Bengaluru-560 001.

5. The Director of Agriculture,
Commissionerat of Sericulture,
Sheshadri Road, K.R.Circle,
Bengaluru-560 001

6. The Director of Agriculture,
Sheshadri Road, K.R.Circle,
Bengaluru-560 001

7. The Joint Director of Agriculture,
Madikeri, Kodagu District-571201

... Respondents

(5)

MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226 & 227 OF
THE CONSTITUTION OF INDIA

The petitioner above named begs to submit as follows;

1. That the petitioner is a proprietorship concern. The petitioner being the sole proprietor is carrying the business under the name and style of Raja Agency, having registered office mentioned in the above mentioned cause title. The petitioner is actively involved in supplying Agricultural Sprinkler Equipment to the formers who are under the subsidy scheme selected by the Karnataka State Government, agricultural department and others. The copy of the certificate of registration of firm is produced at ANNEXURE-A.

2. That, the Government of Karnataka have selected the Premier Agre-Tech as Main Deler to supply Agricultural Sprinkler Equipment in the state, the said Main Deler with the consent of government, intern arranged the sub-dealers to supply the Agricultural Sprinkler Equipment to the selected formers of the Karnataka State Government under subsidy scheme, in respective Taluks of the Districts in the state of Karnataka. Accordingly the petitioner has been selected for the Kodagu District to supply Agricultural Sprinkler Equipment.

3. That, as per the Subsidy Scheme, which informed by the state government of Karnataka, the respondent No.1 and 2 have to bear nearly about 50% of the subsidy amount and the rest 50% should be borne by respondent No.3 to 7. The petitioner being the authorized dealer for Kodagu District for supplying the Agricultural Sprinkler Equipment under Subsidy Scheme for the Karnataka State Government and has supplied the said equipment through the sub agencies of the petitioner as per formers list furnished by the respondent No.3 to 7 to the petitioner.

4. That, the petitioner for the year 2012-13 and 2013-14 had supplied Agricultural Sprinkler Equipment in Kodagu District to the selected formers of the Karnataka State Government under the subsidy scheme. For having supplied the Agricultural Sprinkler Equipment in Kodagu District, the State Government of Karnataka has to pay subsidy amount of Rs.51,09,989/- to the petitioner. Out of total amount due to the petitioner, only Rs.23,65,562/- has been released by the State Government of Karnataka towards the supply of Agricultural Sprinkler Equipment to the selected formers under subsidy scheme in Kodagu District. When asked for the balance due amount of Rs.27,44,422/- to the State Government of Karnataka, who informed the petitioner that, the said due amount of Rs.27,44,422/- has not been released yet by the Government of India/respondent No.1 and 2, which amount was for the year for the year 2012-13 and 2013-14 and the petitioners was asked to co-operate, which will be paid soon. That the respondent No.3 to 7 informed the petitioner that they are in touch with the respondent No.1 and 2 for the their part amount to release. The respondent No.2 to 7 have furnished the internal communication letters with the balance chart showing sanction amount, paid amount and balance amount to the suppliers, to show that they are in the process of releasing the said due amount to the petitioner and the said internal communications are produced at ANNEXURE-B, C, D, and E.

5. That, the petitioner many time has approached the concerned State Government officials to release the full amount, who in their official communication informed that, their part of the amount has already being released and paid to the petitioner but other due part of the share amount has to be received from the Central Government of India, since there is no communication from the central government to release the part of the share amount for the 2012-13 and 2013-14 to the State Government of Karnataka in turn to the petitioner. The copy of the reply to the representation of the petitioner Dated 30-12-2016 through his advocate is produced at ANNEXURE-F. The copy of the representation of the petitioner dated 28-04-2023 is produced at ANNEXURE-G. The copy of the representation dated 28-04-2023 is produced at ANNEXURE-H.

6. That, the approach of the petitioner to authorities of the state Karnataka state government went in vain as they went on assuring the petitioner that as soon as they get the part of the amount from the central government it will be released to the petitioner immediately, but the respondent authorities still showing they are in the process but so far not taken steps to release the due amount by informing the petitioner that they are in the process. The petitioner also patiently waited all these years but the interest for the amount of loan taken by the petitioner from the bank as well as financial institution for supplying the Agricultural Sprinkler Equipment is mounting up and the said bank authorities are putting pressure on the petitioner to wind up the loan otherwise threaten to take legal action against petitioner and his property. The copy of the representation dated 28-04-2023 is produced at ANNEXURE-G.

7. That the petitioner is apprehending that his property may be attach and the petitioner is in need of money for his extension of business, hence the petitioner with great difficulty secured the details of the authorities of the central government and have given a detailed representation by bringing all the facts to their notice and requested to release their part of the amount and thereby the petitioner may get his amount. The copy of the representation dated 05-06-2023 is produced at ANNEXURE-H. The copy of the internal communication dated 10-07-2023 issued by the respondent authorities to the petitioner, which was same communication or information issued to the petitioner in the year 2017 as such it clearly shows the respondent authorities are simply dragging the matter without settling the due amount to the petitioner, the copy of the same is produced at ANNEXURE-J. The petitioner herewith produces the interest calculation letter issued by the authorised chartered accountant is produced at ANNEXURE-K.

8. That, the petitioner feeling apprehensive about, whether he is able receive the entire amount at all, for the supply of Agricultural Sprinkler Equipment to the farmers of Kodagu District as per the eligible list furnished by the state government of Karnataka, since there is considerable delay already and hence petitioner left with no choice the approaches this Hon'ble Court under article 226 and 227 of the Constitution of India, following amount other grounds.

9. No writ or any other proceedings initiated on the basis of the above cause of action before any other court/s against the respondents.

GROUNDS

10. That there is no dispute in between the above parties with regard to quality, quantity and on time supply of Agricultural Sprinkler Equipment to the farmers of Kodagu District as per the eligible list furnished by the state government of Karnataka, but withholding the half of the due payment amount payable to the petitioner, for their internal difference of the state government of Karnataka and central government of India, the petitioner cannot be made as scape goat. Hence it is necessary to direct the respondent authorities to make the payment forthwith in the interest of justice.

11. That, as could be seen from the available documents of the respondent No.3 to 7, which clearly shows, supply of Agricultural Sprinkler Equipment, date of supply, cost, paid amount and due amount/payable amount to the petitioner and said fact is made known to the authorities of the respondent many times by giving representation with no avail. Even after receiving the representations and still sitting over the same without making payment to the petitioner, which is causing inconvenience and irreparable loss to the petitioner, as such it is necessary to protect the interest of the petitioner by issuing suitable direction to the respondents to release the due amount to the petitioner forthwith in the interest of justice.

12. That the respondent authorities took time all these years saying one or the other reasons assuring to pay the due amount to the petitioner but have failed to do so till now and now pointing fingers towards the central government of India, saying they yet to receive their part of the amount to pay the due amount of Rs.27,44,422/- to the petitioner is something fishy and it shows no coordination between them to release the due amount to the petitioner.

13. That, the petitioner had supplied the said the Agricultural Sprinkler Equipment to the formers as per the beneficiary list provided the respondents. For supplying said equipment the petitioner had obtained Bank loan as well as loan from financial institutions, the interest on loan amount is has mounted up and the said bank and financial authorities are putting pressure on the petitioner to wind up the loan otherwise threaten to take legal action against petitioner and his property, as such petitioner is in dire need of money but withholding of due payment to the petitioner by the respondent causing much inconvenience and hardship, hence it is necessary to release the due amount payable to the petitioner forthwith in the interest of justice.

14. That the petitioner is a small business man and solely dependent on the income derived of the said supplied Agricultural Sprinkler Equipment to the respondent authorities, if any non payment of due amount to the petitioner or delaying of due payment payable to the petitioner without reasons, will not only waste hard Labour of the petitioner and also lose their right to life and investment and will be on the streets.

15. That the non-consideration of the petitioner representation seeking to release subsidy amount to the petitioner for having supplied Agricultural Sprinkler Equipment to the beneficiary formers and non payment of full amount by the respondent authorities will deprive the right of the petitioner guaranteed under Article 14, 19 (1) (g) and 21 of the Constitution of India.

16. That, the internal communication dated 10-07-2023 issued by the respondent authorities to the petitioner is for eye wash and no intention to release the due amount to the petitioner, which was the same communication or information issued to the petitioner earlier in the year 2017 also. as such the respondent authorities are simply dragging the matter and hence it is necessary to direct them for releasing the due amount to the petitioner forthwith.

17. Viewed from any angle, inaction of the respondent authorities and their lame excuses, and attitude and also non consideration of the grievance of the petitioner by the respondents even after receipt of representations from the petitioner are highly illegal and in violation of the principal of the natural justice.

18. Further grounds if any in support of the relief sought for by the petitioner will be urged during the course of arguments.

PRAYER

In view of the facts mentioned facts and circumstance, the petitioner humbly prays that this Hon'ble court be pleased to

- i) issue a Writ of Mandamus directing the respondents' authorities to release the due amount of Rs. Rs.27,44,422/- with interest at the rate of 18% pm by considering the representations of the petitioner produced wide Annexure-G and H, in the interest of justice. and
- ii) Issue any other suitable writ or order or direction which the Hon'ble Court deems fit in the circumstances of the case.

Bengaluru
Date:11-09-2023
Address for Service:

Advocate for Petitioner
(Prabhugoud.B.Tumbigi)

IN THE HIGH COURT OF KARNATAKA AT-BENGALURU

Writ Petition No.

/ 2023 (GM-RES)

BETWEEN:

M/s. Raja Agency

... Petitioners

AND:The Principal Secretary,
Government of India,
And others

... Respondents

AFFIDAVIT

I, M.C.Uthaiah, aged about 70 years, S/o.late, M.G. Cariappa, Sole proprietor of M/s. Raja Agency, K2, M., G.Road, Somwarpet, Kodagu-571236, now at Bengaluru-560009, do hereby solemnly affirm and state on oath as follows:-

1. I am the petitioner in the above case and I know the facts of the case, hence I am swearing to this Affidavit.
2. I am state that the statements made in paragraph 1 to 18 of the above writ petition accompanying this verifying affidavit are true to the best of my knowledge, information and belief and I believe them to be true and correct.
3. Annexure A to K are the true copies of the originals.

What stated above is true and correct.

For RAJA AGENCY
Proprietor

Identified by me

DEPONENT

Advocate.
Bengaluru
Date:11-09-2023

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ANNEXURE-A



Government of India
Form GST REG-06
(See Rule 10(1))

Registration Certificate

Registration Number : 29AWJPM551DA1ZS

1.	Legal Name	CARIYAPPA UTHATAH MONNANDA		
2.	Trade Name, if any	RAJA AGENCIES		
3.	Constitution of Business	Proprietorship		
4.	Address of Principal Place of Business	xx, M.G. Road, Somwarpet, Karnataka, 571236		
5.	Date of Liability	01/07/2017		
6.	Period of Validity	From	01/07/2017	To
7.	Type of Registration	Regular		
8.	Particulars of Approving Authority			
Signature Signature Not Verified Digitally signed by D.S. GOODE AND SERVICES PAX NETWORK 1 Date: 2018.07.08 12:50:43 IST				
Name				
Designation				
Jurisdictional Office				
9. Date of issue of Certificate		08-07-2018		
Note: The registration certificate is required to be prominently displayed at all places of business in the State.				

This is a system generated digitally signed Registration Certificate issued based on the deemed approval of application on 01/07/2017.



Annexure A

GSTIN 29AW/PM5510A1Z5
Legal Name CARIYAPPA UTHAIAH MONNANDA
Trade Name, if any RAJA AGENCIES

Details of Additional Places of Business

Total Number of Additional Places of Business in the State 0



GSTIN

29AWJPM5510A1ZS

Legal Name

CARIYAPPA UTHALAH MONNANDA

Trade Name, if any

RAJA AGENCIES

Details of Proprietor



Name

CARIYAPPA UTHALAH MONNANDA

Designatory Status

PROPRIETOR

Resident of State

Karnataka

ಸಂ:ಜಕ್ಕನಿ/ಮ/ತಾಂ.ಅ/ತುಂ.ನೀ.ಪ/2014-15

ಜಂಟಿ ಕೃಷಿ ನಿರ್ದೇಶಕರ ಕಛೇರಿ,
ಕೊಡಗು ಜಿಲ್ಲೆ, ಮಡಿಕೇರಿ.
ದಿನಾಂಕ: 11.06.2014

ಇವರಿಗೆ,

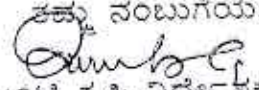
ಉಪ ಕೃಷಿ ನಿರ್ದೇಶಕರು
(ಕ್ಷೇತ್ರ ಪ್ರಯೋಗ)
ಕೃಷಿ ಆಯುಕ್ತಾಲಯ,
ಕೃಷಿ ಇಲಾಖೆ
ಬೆಂಗಳೂರು.

ಮಾನ್ಯರೇ,

ವಿಷಯ: 2012-13 ಮತ್ತು 2013-14ನೇ ಸಾಲಿನಲ್ಲಿ ವಿತರಿಸಿದ ತುಂತುರು
ನೀರಾವರಿ ಘಟಕಗಳಿಗೆ ಕೇಂದ್ರದ ಪಾಲಿನ ಅನುದಾನ ಬಿಡುಗಡೆ
ಮಾಡುವ ಕುರಿತು.

ಉಲ್ಲೇಖ: ಸಹಾಯಕ ಕೃಷಿ ನಿರ್ದೇಶಕರುಗಳ ಬೇಡಿಕೆ ದಿನಾಂಕ: 06.06.2014

ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ 2012-13 ಮತ್ತು 2013-14ನೇ ಸಾಲಿನ
ಜಿಲ್ಲಾವಲಯ ಯೋಜನೆಯ ತುಂತುರು ನೀರಾವರಿ ಘಟಕಗಳನ್ನು ಸಹಾಯಧನದಲ್ಲಿ ವಿತರಿಸಲಾಗಿದ್ದು,
ಸಂಬಂಧಿಸಿದ ಸಂಸ್ಥೆಗಳಿಗೆ ರೈತರ ಪಾಲಿನ ಹಣ ಹಾಗೂ ರಾಜ್ಯದ ಪಾಲಿನ (GOK) (ಜಿಲ್ಲಾವಲಯ)
ಸಹಾಯಧನವನ್ನು ಪಾವತಿಸಲಾಗಿದೆ. ಕೇಂದ್ರ ಪಾಲಿನ (GOI) ಸಹಾಯಧನ ಬಿಡುಗಡೆಯಾಗದ ಕಾರಣ
ಪಾವತಿಸಲು ಸಾಧ್ಯವಾಗಿರುವುದಿಲ್ಲ. ಆದ್ದರಿಂದ ಕೇಂದ್ರದ ಪಾಲಿನ (GOI) ಸಹಾಯಧನದ ಬೇಡಿಕೆ ವಿವರ
ಪರಿಷ್ಕೃತ ತ:ಖ್ತಿಯನ್ನು ಈ ಪತ್ರದೊಂದಿಗೆ ಲಗತ್ತಿಸಲಾಗಿದ್ದು, ಒಟ್ಟು ಕೇಂದ್ರ ಪಾಲಿನ ಸಹಾಯಧನ (GOI)
ರೂ.40.26092 ಲಕ್ಷ ಅನುದಾನ ಬಿಡುಗಡೆ ಮಾಡಬೇಕಾಗಿ ಕೋರಲಾಗಿದೆ.

ಕೃಷಿ ನಂಬುಗೆಯ,

ಜಂಟಿ ಕೃಷಿ ನಿರ್ದೇಶಕರು,
ಕೊಡಗು ಜಿಲ್ಲೆ, ಮಡಿಕೇರಿ.
4

ಪ್ರತಿಯನ್ನು ಸಹಾಯಕ ಕೃಷಿ ನಿರ್ದೇಶಕರು, ಮಡಿಕೇರಿ/ ಸೋಮವಾರದೇಟೆ/ ವೀರಾಜಪೇಟೆ

16

5

Translation of the document:
(Kannada to English Version)

(Symbol)

GOVERNMENT OF KARNATAKA:
AGRICULTURE DEPARTMENT:

Agricultural Joint Commissionerate Office,

Kodagu District, at Madikeri:

E-mailID:jointdirectmca@bsnl.in/jdmadikeri@yahoo.in

Ph.No./Fax: 08272-225732, 224194

No.JDA/M/TD/SIU/2014-15:

Dated: 11-06-2014.

To.
Deputy Director of Agriculture,
(Field Lab.)Agricultural
Commissionerate Office,
Agriculture Department,
Bengaluru.

Sir,

Sub:- To release of grants-in-aid for Central
Government share to Spring Irrigation Units
distributed in the year 2012-13 and 2013-14
- Reg.

Ref:- 1) Demand of Asst. Director of Agriculture
held on 06-06-2014.

With Ref. to the above subject, as it has been distributed the Spring Irrigation Units in respect of District Range Project for the year 2012-13 and 2013-14 in grant in aid; the share money of agriculturists and the financial assistance in respect of State share (GOK) (District Range) that has also paid. That in view of not released the financial aid of Central Government share (GOI) and hence cannot possible for payment of the same. Therefore, as it has been enclosed the Revised Statement of the particulars of demand of Grant in Aid of Central Government share (GOI) that has been enclosed along with this letter; and hence it is claimed for release of said grants of Rs.40,26,092/- the total Central Government share (GOI) in this regard.

Yours faithfully,

Sd/-

Joint Director of Agriculture,
Kodagu Dist. Madikeri.

Copy to: Asst. Director of Agriculture, at Madikeri/Somawarpete
/ Virajapete.

Seal)

//True translated copy//

Revised Statement as per talukawise regarding made for distribution of grant in aids of Central Government share (GOI) to Sprinkling Irrigation Units distributed during the years 2012-13 and 2013-14 respectively.

Sl. No.	Taluka	Year	Name of Institution.	Unit	Category of agriculturists	No. of Beneficiaries	Total grant in aid	already paid GOK/ZP grant in aid	grant in aid of Central Govt. share (GOI) pending for payment of arrears to the Institution.
1	Madikeri	2012-13	Premier Irrigation	HDPE 1 Htr.75 mm	General	60	8.5698	3.999	4.5708
		2013-14	Oasis	Aluminium 1 Htr.75 mm	General	52	8.91280	4.95144	3.96136
2	Somawarape	2012-13	Premier Irrigation	HDPE 1 Htr.63 mm	General	174	22.1763	7.39152	11.82676
		2013-14	Premier Irrigation	HDPE 1 Htr.63 mm	General S.C.	94 08	14.37542 1.22352	7.98624 0.67976	6.38918 0.54376

20

3	Virajpete	2012-13	Oasis	Aluminium 1 Htr.75 mm	General	43	6.14169	2.86595	3.27574
			Premier Irrigation	Aluminium 1 Htr.75 mm	General	54	7.71285	3.59910	4.11372
		2013-14	Oasis	Aluminium 1 Htr.75 mm	General	36	6.1704	3.42792	2.74248
				Aluminium 2 Htr.75 mm	General	26	6.38352	3.54640	2.83712
	Total								40.26092

Seal)

Sd/-
Joint Director of Agriculture,
Kodagu Dist. Madikeri.

//True translated copy//

ಸೋಂಪು ಅಂಚೆ ಸ್ವೀಕೃತಿ

ಕರ್ನಾಟಕ



ಸರ್ಕಾರ

(ಕೃಷಿ ಇಲಾಖೆ)

100

ಜಂಟಿ ಕೃಷಿ ನಿರ್ದೇಶಕರ ಕಛೇರಿ, ಕೊಡಗು ಜಿಲ್ಲೆ, ಮಡಿಕೇರಿ

Email ID : jointdirectmca@bsnl.in/jdamadikeri@yahoo.in

Ph. No./Fax :08272-225732, 224194

ಸಂ:ಜಕ್ಕನಿ.ಮ/ತಾಂ.ಅ/ತುಂ.ನೀ.ಫ/2015-16/973

ದಿನಾಂಕ: 04.03.2016

ಇವರಿಗೆ,

ಕೃಷಿ ನಿರ್ದೇಶಕರು,
ಕೃಷಿ ನಿರ್ದೇಶನಾಲಯ,
ಬೆಂಗಳೂರು.

ಮಾನ್ಯರೇ,

ವಿಷಯ: 2012-13ನೇ ಸಾಲಿನಲ್ಲಿ ವಿತರಿಸಲಾದ ತುಂತುರು ನೀರಾವರಿ
ಘಟಕಗಳಿಗೆ ಕೇಂದ್ರ ಪಾಲಿನ ಸಹಾಯಧನ ಬಿಡುಗಡೆ ಮಾಡುವ ಬಗ್ಗೆ.

ಉಲ್ಲೇಖ: 1. ಸಹಾಯಕ ಕೃಷಿ ನಿರ್ದೇಶಕರುಗಳ ಬೇಡಿಕೆ ದಿನಾಂಕ:
06.06.2014

2. ಈ ಕಛೇರಿಯ ಪತ್ರ ಸಂ:ಜಕ್ಕನಿ.ಮ/ತಾಂ.ಅ/ತುಂ.ನೀ.ಫ/2014-15
ದಿನಾಂಕ:11.06.2014 ಮತ್ತು 12.11.2014

ಮೇಲ್ಕಂಡ ವಿಷಯ ಸಂಬಂಧಿಸಿದಂತೆ, 2012-13ನೇ ಸಾಲಿನಲ್ಲಿ ಜಿಲ್ಲಾವಲಯ (ಲೆಕ್ಕ
ಶೀರ್ಷಿಕೆ: 2435-00-101-0-30) ದಲ್ಲಿ 380 ಸಂಖ್ಯೆಯ ತುಂತುರು ನೀರಾವರಿ ಘಟಕಗಳನ್ನು
ವಿತರಿಸಲಾಗಿದ್ದು, ರಾಜ್ಯದ ಪಾಲಿನ ಶೇ.35 ರ ಸಹಾಯಧನವನ್ನು ಜಿಲ್ಲಾವಲಯದಲ್ಲಿ ಪಾವತಿಸಲಾಗಿದೆ.
ಆದರೆ ಕೇಂದ್ರದ ಪಾಲಿನ ಅನುದಾನ ಬಿಡುಗಡೆಯಾಗದೆ, ಕಾರಣ ಕೇಂದ್ರದ ಪಾಲಿನ ಶೇ.40 ರ
ಸಹಾಯಧನ ರೂ. 23,78,702/- (ರೂಪಾಯಿ ಇಪ್ಪತ್ತು ಮೂರು ಲಕ್ಷದ ಎಪ್ಪತ್ತಿಂಟು ಸಾವಿರದ ಏಳು
ನೂರು ಎರಡು ಮಾತ್ರ)ವನ್ನು ಪಾವತಿಸಲು ಸಾಧ್ಯವಾಗಿರುವುದಿಲ್ಲ. ಅನೇಕ ಬಾರಿ (ಉಲ್ಲೇಖಿತ ಪತ್ರಗಳಲ್ಲಿ)
ಕೇಂದ್ರದ ಪಾಲಿನ ಅನುದಾನ ಬಿಡುಗಡೆ ಮಾಡಲು ಕೋರಲಾಗಿತ್ತು. ಆದರೂ ಇದುವರೆವಿಗೂ
ಬಿಡುಗಡೆಯಾಗಿರುವುದಿಲ್ಲ. ತುಂತುರು ನೀರಾವರಿ ಘಟಕಗಳ ಸರಬರಾಜು ಸಂಸ್ಥೆಯವರು ಮೇಲಿಂದ
ಮೇಲೆ ಕೇಂದ್ರದ ಪಾಲಿನ ಸಹಾಯಧನವನ್ನು ಪಾವತಿಸಲು ಕೋರುತ್ತಿದ್ದಾರೆ. ಆದುದರಿಂದ 2012-13ನೇ
ಸಾಲಿನಲ್ಲಿ ವಿತರಿಸಲಾದ ತುಂತುರು ನೀರಾವರಿ ಘಟಕಗಳ ಕೇಂದ್ರದ ಪಾಲಿನ ಶೇ.40 ರ ಸಹಾಯಧನ
ರೂ. 23,78,702/-ಗಳನ್ನು ಬಿಡುಗಡೆ ಮಾಡಬೇಕಾಗಿ ಕೋರಲಾಗಿದೆ. (ಉಲ್ಲೇಖಿತ ಪತ್ರಗಳ ಪ್ರತಿಯನ್ನು
ಈ ಪತ್ರದೊಂದಿಗೆ ಲಗತ್ತಿಸಿ ಸಲ್ಲಿಸಲಾಗಿದೆ)

ತಮ್ಮ ನರಸಿಂಹಯ್ಯ.

ಜಂಟಿ ಕೃಷಿ ನಿರ್ದೇಶಕರು,
ಕೊಡಗು ಜಿಲ್ಲೆ, ಮಡಿಕೇರಿ.

ಇದನ್ನು ಸಲ್ಲಿಸಿದೆ

ದಿನಾಂಕ: 06/03/2016

Translation of the document:
(Kannada to English Version)

(Symbol)

GOVERNMENT OF KARNATAKA:
AGRICULTURE DEPARTMENT:

Agricultural Joint Commissionerate Office,
Kodagu District, at Madikeri:

E-mailID: jointdirectmca@bsnl.in/jdmdakeri@yahoo.in

Ph.No./Fax: 08272-225732, 224194

No.JDAM/TD/SIU/2015-16:

Dated: 04-03-2016.

To.
Director of Agriculture,
Agricultural Directorate Office,
Agriculture Department,
Bengaluru.

Sir,

Sub:- To release of grants for Central Government
share of Spring Irrigation Units distributed in
the year 2012-13 – Reg.

Ref:- 1) Demand of Asst. Director of Agriculture
held on 06-06-2014.

2) This Office Ltr.No.JDA/M//TO/SIU/2014-
15 Dated: 11-06-2014 and 12-11-2014.

With Ref. to the above subject, that has been distributed 380 numbers of Spring Irrigation Units (Head of Account - 2435-00-101-0-30) in the District Range during the year 2012-13; the share of State Government at 35% grant in aid that is paid in the District Region. But in view of not releasing the grant in aid of Central Government share at 40% the said grant in aid of Rs.23,78,702/- (rupees twenty-three lakh seventy-eight thousand seven hundred and two only) that has not possible for payment of the same. On so many occasions (in the above referred letters) that was claimed for releasing grant in aid of Central Government share in this regard. But even though till this day, did not released the same. The supply Company of said Spring Irrigation Units as they have claimed for the payment of said grant in aid of Central Government share again and again in this regard. Therefore it is claimed for the release of grant in aid of Rs.23,78,702/- at 40% of Central Government share in respect of Spring Irrigation Units distributed in the year 2012-13. (The above referred copies of letters are submitted by enclosing along with this letter).

Yours faithfully,
SD/-

Joint Director of Agriculture,
Kodagu Dist. Madikeri,
Dispatched on: 16-03-16

Seal)

//True translated copy//

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
(ಕೃಷಿ ಇಲಾಖೆ)

ಸಂಖ್ಯೆ:ಉಕ್ಕಡಿ/ಕೃಷಿ/ಸೂನಿ/ಸೂನಿ/ಕೊಡಗು/2016-17

ಕೃಷಿ ಆಯುಕ್ತರ ಕಾರ್ಯಾಲಯ
ಶೇಷಾದ್ರಿ ರಸ್ತೆ, ಬೆಂಗಳೂರು
ದಿನಾಂಕ: 13-01-2017

ಇವರಿಗೆ:

ಜಂಟಿ ಕೃಷಿ ನಿರ್ದೇಶಕರು
ಕೊಡಗು ಜಿಲ್ಲೆ

ವಿಷಯ: ಶ್ರೀ ಎಂ.ಸಿ.ಉತ್ತಯ್ಯ, ರಾಜ ಏಜೆನ್ಸಿ ಮಾಲೀಕರು, ಸೋಮವಾರಪೇಟೆ ಇವರಿಗೆ
ಸೂಕ್ಷ್ಮ ನೀರಾವರಿ ಘಟಕಗಳನ್ನು ಸರಬರಾಜು ಮಾಡಿದ ಅನುದಾನ
ಪಾವತಿಸುವ ಬಗ್ಗೆ

ಉಲ್ಲೇಖ: ಶ್ರೀ ಡಿ.ಎ.ಕೃಷ್ಣಕುಮಾರ್, ವಕೀಲರು ಕೊಡಗು ಜಿಲ್ಲೆ, ಸೋಮವಾರಪೇಟೆ
ತಾಲ್ಲೂಕು ಇವರ ದಿನಾಂಕ: 29-12-2016ರ ಪತ್ರ

ಮೇಲಿನ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ, ಉಲ್ಲೇಖಿತ ಪತ್ರದಲ್ಲಿ ಶ್ರೀ ಎಂ.ಸಿ.ಉತ್ತಯ್ಯ, ರಾಜ ಏಜೆನ್ಸಿ ಮಾಲೀಕರು, ಸೋಮವಾರಪೇಟೆ ಇವರು ಸೂಕ್ಷ್ಮ ನೀರಾವರಿ ಯೋಜನೆಯಡಿ 2012-13ನೇ ಸಾಲಿನಲ್ಲಿ 288 ರೈತರಿಗೆ (60ರೈತರು-ಮಡಿಕೇರಿ, 174 ರೈತರು- ಸೋಮವಾರಪೇಟೆ, 54-ರೈತರು-ಬಿರಾಜಪೇಟೆ ತಾಲ್ಲೂಕು) ಹುಂಪುರು ನೀರಾವರಿ ಘಟಕಗಳನ್ನು ಸರಬರಾಜು ಮಾಡಿದ್ದು, ಇವರಿಗೆ ಈ ಸಂಬಂಧ ರೂ. 20,51,128/-ಗಳ ಅನುದಾನ ಪಾವತಿ ಬಾಕಿ ಇರುವುದಾಗಿ ತಿಳಿಸಿ (ಪ್ರತಿ ಲಗತ್ತಿಸಿದೆ) ಇವರ ವಕೀಲರ ಮೂಲಕ ಪತ್ರ ಕಳುಹಿಸಿರುತ್ತಾರೆ.

ಸದರಿಯವರ ಪತ್ರದ ಅನ್ವಯ, ಶ್ರೀ ಎಂ.ಸಿ.ಉತ್ತಯ್ಯ, ರಾಜ ಏಜೆನ್ಸಿ ಮಾಲೀಕರು, ಸೋಮವಾರಪೇಟೆ ಇವರು ರೈತರ ಕ್ಷೇತ್ರದಲ್ಲಿ ಹುಂಪುರು ನೀರಾವರಿ ಘಟಕಗಳನ್ನು ಅಳವಡಿಸಿರುವ ಬಗ್ಗೆ ಪರಿಶೀಲಿಸಲು, ಇವರಿಗೆ 2012-13 ಸಾಲಿನಲ್ಲಿ ಸಹಾಯಧನ ಪಾವತಿಸದೇ ಇರಲು ಕಾರಣಗಳೇನು ಎಂಬುದರ ಬಗ್ಗೆ ಮಾಹಿತಿ ಒದಗಿಸಲು ಮತ್ತು ಈ ಕುರಿತು ನಿಯಮಾನುಸಾರ ಸೂಕ್ತ ಕ್ರಮ ಕೈಗೊಳ್ಳಲು ತಿಳಿಸಿದೆ.

ಅಧಿಕ ಕೃಷಿ ನಿರ್ದೇಶಕರು

(ಮಾನವ ಸಂಪನ್ಮೂಲ ಅಭಿವೃದ್ಧಿ)

✓ ಸದರಿಯನ್ನು ಶ್ರೀ ಡಿ.ಎ.ಕೃಷ್ಣಕುಮಾರ್, ವಕೀಲರು, ಅಕ್ಕನಾಳಗರ ಹಾವಿ, ಕೊಡಗು ಜಿಲ್ಲೆ ಬೌನ್, ಸೋಮವಾರಪೇಟೆ ತಾಲ್ಲೂಕು, ಕೊಡಗು ಜಿಲ್ಲೆ ಇವರಿಗೆ ಮಾಹಿತಿಗಾಗಿ ಕಳುಹಿಸಿದೆ.

For the Secy. Dy. Secy.



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ಆಂ.ಪಿ. 54
 ಆರ್.ಪಿ. 54
 R.P. 54

ಆಂ.ಪಿ. 54
 ಆರ್.ಪಿ. 54
 R.P. 54

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ಆಂ.ಪಿ. 54
 ಆರ್.ಪಿ. 54
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* ರೂ. ಗಳಿಗೆ ವಿಮೆ ಮಾಡಲಾಗಿದೆ. ಬೋನಾ ನ್ಯಾಯ ಕಛೇರಿಗೆ

Insured for Rupees

* ಸ್ವೀಕರಿಸುವವರ ಹೆಸರು ಪಾನೆ ಬಾಲಿ

Addressed to

Ion

ರಂದು ಕಾ

ಅಗತ್ಯ ವಿಲ್ಲದುದನ್ನು ಹೊರತುಪಡಿಸಿ
अनावश्यक को काट दिया जाए.
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पानेवाले के हस्ताक्षर और नाम
Signature and Name

ಆಂ.ಪಿ. ೫೪
ಆರ್.ಪಿ. ೫೪
R.P. 54

ಭಾರತೀಯ ಅಂಚೆ ಇಲಾಖೆ
भारतीय डाक विभाग
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पानेवाले के हस्ताक्षर और नाम
Signature and Name

ಆಂ.ಪಿ. ೫೪
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R.P. 54

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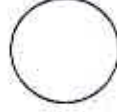
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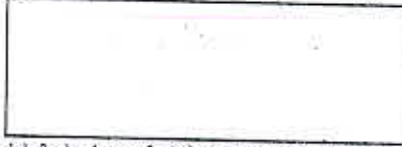
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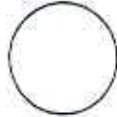
Sri D.A.Krishna Kumar,
Advocate,
Akksaligara Street, Kodlipet Town
Somwarpet Taluk, Kodagu district.
PIN - 571231

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ದಿನಾಂಕ: 01.03.2017

ಗೆ,

ಮಾನ್ಯ ಕೃಷಿ ನಿರ್ದೇಶಕರು,
ಕೃಷಿ ನಿರ್ದೇಶನಾಲಯ,
ಬೆಂಗಳೂರು.

ಮಾನ್ಯರೇ,

ವಿಷಯ: 2011-12, 2012-13 ಮತ್ತು 2013-14ನೇ ಸಾಲುಗಳಲ್ಲಿ ಸೂಕ್ಷ್ಮ ನೀರಾವರಿ
ಕಾರ್ಯಕ್ರಮದಡಿ ಅನುದಾನ ಪಾವತಿ ಬಾಕಿ ಇರುವ ಬಗ್ಗೆ.

- ಉಲ್ಲೇಖ: 1. ತಮ್ಮ ಕಛೇರಿ ಪತ್ರ ಸಂಖ್ಯೆ/ಉಕ್ಕನಿ/ಕೃಯೋ & ಸೂನೀ/ಸೂನೀ/Pending/
2016-17 ದಿನಾಂಕ 08.11.2016
2. ಸರ್ಕಾರದ ಪತ್ರ ಸಂಖ್ಯೆ/ಕೃಇ141/ಕೃಮಸ/2016 ದಿನಾಂಕ 28.01.2017
3. ಈ ಕಛೇರಿ ಪತ್ರ ಸಂಖ್ಯೆ ಜಕ್ಕನಿ/ತಾಂಅ/ತು.ನೀ.ಘ/2016/293/ದಿನಾಂಕ
04.03.2016
4. ಅನುದಾನ ಬಿಡುಗಡೆ ಆದೇಶ ಸಂ/ಎನಿಎ/ಬಿಜಿಬಿ/RKVY/ಅಬಿ/2014-15 ದಿನಾಂಕ
30.10.2014
5. ಈ ಕಛೇರಿ ಪತ್ರ ಸಂಖ್ಯೆ ಜಕ್ಕನಿ/ತಾಂಅ/ತು.ನೀ.ಘ/2014-15/ದಿನಾಂಕ
12.11.2014
6. ಈ ಕಛೇರಿ ಪತ್ರ ಸಂಖ್ಯೆ ಜಕ್ಕನಿ/ತಾಂಅ/ತು.ನೀ.ಘ/2014-
15/ದಿನಾಂಕ 11.06.2014

ಮೇಲಿನ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ, ಕೊಡಗು ಜಿಲ್ಲೆಯಲ್ಲಿ 2012-13 ಮತ್ತು 2013-14ನೇ ಸಾಲಿನಲ್ಲಿ
ವಿತರಿಸಲಾದ ತುಂತುರು ನೀರಾವರಿ ಘಟಕಗಳಿಗೆ ಜಿಲ್ಲಾವಲಯ ಯೋಜನೆಯಲ್ಲಿ ರಾಜ್ಯದ ಪಾಲಿನ (GOK)
ಸಹಾಯಧನ ಪಾವತಿಸಲಾಗಿದ್ದು, ಕೇಂದ್ರದ ಪಾಲಿನ ಸಹಾಯಧನ (GOI) ಕ್ಕೆ ಉಲ್ಲೇಖಿತ ಪತ್ರ 3ರಲ್ಲಿ ಬೇಡಿಕೆ
ಸಲ್ಲಿಸಲಾಗಿತ್ತು. ಉಲ್ಲೇಖಿತ 4ರ ಅನುದಾನ ಬಿಡುಗಡೆ ಆದೇಶದಲ್ಲಿ 2013-14ನೇ ಸಾಲಿನಲ್ಲಿ ವಿತರಿಸಲಾದ ತುಂತುರು
ನೀರಾವರಿ ಘಟಕಗಳಿಗೆ ಮಾತ್ರ ಕೇಂದ್ರದ ಪಾಲಿನ (GOI) ಸಹಾಯಧನ ಬಿಡುಗಡೆ ಮಾಡಿದ್ದು, ಸಂಬಂಧಿಸಿದ
ಸಂಸ್ಥೆಗಳಿಗೆ ಪಾವತಿಸಲಾಗಿರುತ್ತದೆ.

ಆದರೆ 2012-13ನೇ ಸಾಲಿನಲ್ಲಿ ವಿತರಿಸಲಾದ ತುಂತುರು ನೀರಾವರಿ ಘಟಕಗಳಿಗೆ ಕೇಂದ್ರದ (GOI) ಪಾಲಿನ
ಸಹಾಯಧನ ರೂ 23,18,702.00 ಸಹಾಯಧನ ಬಿಡುಗಡೆ ಮಾಡಿರಲಿಲ್ಲ. ಉಲ್ಲೇಖಿತ ಪತ್ರ 3 ಮತ್ತು 5 ರಲ್ಲಿ
ಕೇಂದ್ರದ ಪಾಲಿನ ಸಹಾಯಧನ ಬಿಡುಗಡೆ ಮಾಡಲು (GOI) ಕೋರಲಾಗಿತ್ತು, ಆದರೆ ಇದುವರೆಗೂ ಕೇಂದ್ರದ
ಪಾಲಿನ ಅನುದಾನ ಬಿಡುಗಡೆ ಮಾಡಿರುವುದಿಲ್ಲ.

ಹಿಂದಿನಿಂದಲೂ ಪತ್ರ ವ್ಯವಹಾರ ಮಾಡಲಾಗುತ್ತಿದ್ದರೂ 2012-13ನೇ ಸಾಲಿನಲ್ಲಿ ವಿತರಿಸಲಾದ ತುಂತುರು
ನೀರಾವರಿ ಘಟಕಗಳಿಗೆ ಕೇಂದ್ರದ ಪಾಲಿನ (GOI) ಸಹಾಯಧನ ಬಿಡುಗಡೆ ಮಾಡಿರುವುದಿಲ್ಲ, ಎಲ್ಲಾ ಉಲ್ಲೇಖಿತ
ಪತ್ರಗಳ ಪ್ರತಿಗಳನ್ನು ಈ ಪತ್ರದೊಂದಿಗೆ ಲಗತ್ತಿಸಿ ಕಳುಹಿಸುತ್ತಾ 2012-13ನೇ ಸಾಲಿನಲ್ಲಿ ವಿತರಿಸಲಾದ ತುಂತುರು
ನೀರಾವರಿ ಘಟಕಗಳ ಬಾಬು ಕೇಂದ್ರದ ಪಾಲಿನ ಸಹಾಯಧನ ರೂ 23,78,702.00 ಗಳನ್ನು ಬಿಡುಗಡೆ
ಮಾಡಬೇಕಾಗಿ ಕೋರಲಾಗಿದೆ.

ಸಹಾಯಕ ನಿರ್ದೇಶಕರು
ದಿನಾಂಕ: 09/03/17

ಗೃಹ

0/C

ತಮ್ಮ ಸಂಬಂಧಿಯು

ಜಂಟಿ ಕೃಷಿ ನಿರ್ದೇಶಕರು.

ಕೊಡಗು ಜಿಲ್ಲೆ, ಮದಿಕೇರಿ.

25

9

Translation of the document:
(Kannada to English Version)

(Symbol)

GOVERNMENT OF KARNATAKA:
AGRICULTURE DEPARTMENT:

Agricultural Joint Commissionerate Office,
Kodagu District, at Madikeri:

E-mailID:jointdirectmca@bsnl.in/jdmadikeri@yahoo.in

Ph.No./Fax:08272-225732, 224194

No.JDA/M/TO/SIU/2016-17/728:

Dated: 01-03-2017.

By RPAD:

To,
Hon'ble Director of Agriculture,
Office of Directorate of Agriculture,
Agriculture Department,
Bengaluru.

Sir,

Sub:- About arrears of the payment of grant in aid
under Sensitive Irrigation Programs during the
years of 2011-12, 2012-13 and 2013-14
respectively - Reg.

Ref:- 1) Your Office Ltr. No.DDA/AP&SI/SI/
Pending /2016-17; Dated: 08-11-2016.

(26)

- 2) Government Ltr.No.AD/141/Kru.Ma.Sa./2016; dated: 28-01-2017.
- 3) This Office Ltr. No.JDA/TO/SIU/2016/293; dated: 04-03-2016.
- 4) Grant in aid releasing Order No.Ae.Ni.Ae/BGB/RKVY/Aa.Bi./2014-15 dt:30-10-2014.
- 5) This Office Ltr. No.JDA/TO/SIU/2014-15; dated: 12-11-2014.
- 6) This Office Ltr. No.JDA/TO/SIU/2014-15; dated: 11-06-2014.

With Ref. to the above subject, the grant in aid has been made payment of State Government share (GOK) under District range Project to Spring Irrigation Units distributed during the years of 2012-13 and 2013-14 respectively in Kodagu District; and demand was submitted to Central Government Share (GOI) in the above referred vide Ref.(3) in this regard. In the above releasing order of grants of Central Government share (GOI) in the above referred vide Ref.(4) to the units of Spring Irrigation Units only, that is made release of grant in aid of Central Government (GOI) and that is made payment of the same to the concerned Institutions in this regard.

But did not released the said grant in aid of Rs.23,18,702-00 about Central Government share (GOI) to the Spring Irrigation Units distributed in the year 2012-13; that was claimed for releasing of Central Government share (GOI) in the above referred letters vide Ref.(3) & (5); but until this day, did not released the grant in aid of Central Government share (GOI), in this regard.

Since from previously the letter correspondence is being made, but even though did not made release of said grant in aid of the Central Government share (GOI) to the Spring Irrigation Units distributed in the year 2012-13. All copies of above referred copies of letters by enclosing the same to this letter, it has claimed that could be released the said grant in aid of Rs.23,78,702/- concerning to Central Government share (GOI) to the Spring Irrigation Units distributed in the year 2012-13 in this regard.

Yours faithfully,

Sd/-

Joint Director of Agriculture,
Kodagu Dist. at Madikeri.
Dispatched on: 16-03-16

Dispatched on: 19-03-17
Sd/-

Seal)

//True translated copy//

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

(ಕೃಷಿ ಇಲಾಖೆ)

ಸಂಖ್ಯೆ: ಉಕೃನಿ/ಕೃಯಾ&ಸೂನಿ/ಸೂನಿ/ಕೊಡಗು/2016-17

ಕೃಷಿ ಆಯುಕ್ತರ ಕಾರ್ಯಾಲಯ,
ಬೇಷಾದ್ರಿ ರಸ್ತೆ, ಬೆಂಗಳೂರು
ದಿನಾಂಕ 13-01-2017

ಇವರಿಗೆ:

ಜಂಟಿ ಕೃಷಿ ನಿರ್ದೇಶಕರು,

ಕೊಡಗು ಜಿಲ್ಲೆ,

ವಿಷಯ: ಶ್ರೀ ಎಂ.ಸಿ. ಉತ್ತಯ್ಯ, ರಾಜ ಏಜೆನ್ಸಿ ಮಾಲೀಕರು, ಸೋಮವಾರಪೇಟೆ ಇವರಿಗೆ ಸೂಕ್ಷ್ಮ ನೀರಾವರಿ ಘಟಕಗಳನ್ನು ಸರಬರಾಜು ಮಾಡಿದ ಅನುದಾನ ಪಾವತಿಸುವ ಬಗ್ಗೆ

ಉಲ್ಲೇಖ ಶ್ರೀ ಡಿ.ಎ. ಕೃಷ್ಣಕುಮಾರ್ ವಕೀಲರು, ಕೊಡಗು ಜಿಲ್ಲೆ ಸೋಮವಾರಪೇಟೆ ತಾಲ್ಲೂಕು ಇವರ ದಿನಾಂಕ 29-12-2016ರ ಪತ್ರ

ಮೇಲಿನ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ, ಉಲ್ಲೇಖಿತ ಪತ್ರದಲ್ಲಿ ಶ್ರೀ ಎಂ.ಸಿ. ಉತ್ತಯ್ಯ, ರಾಜ ಏಜೆನ್ಸಿ ಮಾಲೀಕರು, ಸೋಮವಾರಪೇಟೆ ಇವರು ಸೂಕ್ಷ್ಮ ನೀರಾವರಿ ಯೋಜನೆಯಡಿ 2012-13ನೇ ಸಾಲಿನಲ್ಲಿ 288 ರೈತರಿಗೆ (60- ರೈತರು-ಮಡಿಕೇರಿ)174 ರೈತರು-ಸೋಮವಾರಪೇಟೆ, 54- ರೈತರು ವಿರಾಜಪೇಟೆತಾಲ್ಲೂಕು) ತುಂತುರು ನೀರಾವರಿ ಘಟಕಗಳನ್ನು ಸರಬರಾಜು ಮಾಡಿದ್ದು, ಇವರಿಗೆ ಈ ಸಂಬಂಧ ರೂ.20,51,128/- ಗಳನ್ನು ಅನುದಾನ ಪಾವತಿ ಬಾಕಿ ಇರುವುದಾಗಿ ತಿಳಿಸಿ (ಪ್ರತಿ ಲಗತ್ತಿಸಿದೆ) ಇವರ ವಕೀಲರ ಮೂಲಕ ಪತ್ರ ಕಳುಹಿಸಿರುತ್ತಾರೆ.

ಸದರಿಯವರ ಪತ್ರದ ಅನ್ವಯ ಶ್ರೀ ಎಂ.ಸಿ. ಉತ್ತಯ್ಯ, ರಾಜ ಏಜೆನ್ಸಿ ಮಾಲೀಕರು, ಸೋಮವಾರಪೇಟೆ ಇವರು ರೈತರ ಕ್ಷೇತ್ರದಲ್ಲಿ ತುಂತುರು ನೀರಾವರಿ ಘಟಕಗಳನ್ನು ಬಗ್ಗೆ ಪರಿಶೀಲಿಸಲು, ಇವರಿಗೆ 2012-13 ಸಾಲಿನಲ್ಲಿ ಸಹಾಯಧನ ಪಾವತಿಸದೇ ಇರಲು ಕಾರಣಗಳೇನು ಎಂಬುದರ ಬಗ್ಗೆ ಮಾಹಿತಿ ಒದಗಿಸಲು ಮತ್ತು ಈ ಕುರಿತು ನಿಯಮಾನುಸಾರ ಸೂಕ್ತ ಕ್ರಮ ಕೈಗೊಳ್ಳಲು ತಿಳಿಸಿದೆ.

ಸಹಿ/-

ಅಪರ ಕೃಷಿ ನಿರ್ದೇಶಕರು
(ಮಾನವ ಸಂಪನ್ಮೂಲ ಅಭಿವೃದ್ಧಿ)

ಪ್ರತಿಯನ್ನು:

ಶ್ರೀ ಡಿ.ಎ. ಕೃಷ್ಣಕುಮಾರ್ ವಕೀಲರು, ಅಕ್ಕಸಾಲಿಗರ ಬೀದಿ, ಕೊಡಗು ಜಿಲ್ಲೆ ಸೋಮವಾರಪೇಟೆ ತಾಲ್ಲೂಕು, ಕೊಡಗು ಜಿಲ್ಲೆ, ಇವರಿಗೆ ಮಾಹಿತಿಗಾಗಿ ಕಳುಹಿಸಿದೆ.

29

GOVERNMENT OF KARNATAKA
Department of Agriculture

No.Ukrani.Kru.yAMsUnii/Suni/
Kodagu/2016-17

Office of the Agricultural Director
Sheshadri Road, Bengaluru
Dated: 13-01-2017

To:
The Joint Director of Agriculture,
Kodagu District.

Sub Regarding payment of grant for supplying Micro
Irrigation units to Sri M.C Uttaya Raja Agency
Proprietor, Somwarpet

Ref: Letter by Sri.D.A.Krishna Kumar Advocate,
Kudlipet, Somwarapet Taluk, dated 29-12-2016

In the above mentioned letter Sri M.C Uttaya Raja
Agency Proprietor, Somwarpet, who has supplied 288
sprinkler irrigation units to 288 farmers (960 farmers,
Madikere) 174 Farmers-Somwarpete, 54 Farmers Virajpete
Taluk) in Micro Irrigation Scheme in 2012-13th year has
sent a letter through his lawyer that he owes Rs.20,51,128/-
as subsidy in this regard.

Pursuant to the said letter by Sri. M.C. Uttaya Raja
Agency owner, Somwarpet, has been asked to inspect the
sprinkler irrigation units in the farmer's field to provide
information about the reasons for non-payment of subsidy in
the year of 2012-13 and to take appropriate action in this
regard.

Sd/-
Additional Agricultural Director

Copy to:

- Sri.D.A.Krishna Kumar Advocate, Kudlipet, Somwarapet
Taluk for information.

(30)

Reg A.D

Somwarpet

Date: 28.4.2023

From.

M/S Raja Agency
k2, M.G. Road, Somwarpet
Kodagu 571 236
Rep. by its Proprietor Sri. M.C. Uthaiiah

To.

The Director of Agriculture
commissionerate of Agriculture
Dept of Agriculture
BANGALORE. - 560001

Dear Sir/ Madam,

SUB:- Release of amount of Rs.27,44,422/-
(Rupees twenty seven lakhs fortyfour
thousand fourhundred forty two only)
with interest.

My above said Agency under the premier Irrigation Agritech
227/1, Mysore Road, Bangalore had supplied Premier
Irrigation branded 63mm (2 inch) HDP pipes with assessories
to the farmers designated by the Government of Karnataka

On supply of said pipes worth of Rs.51,09,989-00 as per
your instructions. The Joint Director Agriculture, Kodagu
District Madikeri, released the amount of Rs.23,65,562-00
of the share from Gift of Karnataka, Bangalore and
assured the rest of the amount of Rs.27,44,422.00 would
be released by the Government of India through their
agriculture department.

On several occasions, we have approached your authorities
seeking release of the amount of Rs.27,44,422-00 stated
to have to release from the Government of India. Your
authorities on our request communicated our grievance to
the Director of Agriculture, Karnataka Bangalore, many
times for releasing the said amount as and so far not
released.

Your authorities even though aware of the fact that we have
to yet to receive the amount of Rs.27,44,422-00 for having
supplied the materials but till date your authorities
stating one or the other reason went on to assure to pay
the said amount but not paid due amount till as on

Contd. in page 2.
xxxxxx

-2-

We have supplied the materials as directed by you to the farmers on time by taking financial help from the financial institution due to nonpayment of balance due amount of Rs.27,44,422-00 towards as such my loan amount interest escalating day by day carrying thereby over burdened to us.

we are herewith producing the correspondence and statement of bills for your easy reference.

Therefore I request your authority take forthwith suitable action for releasing the balance due amount of Rs.27,44,422-00 (Rupees twenty seven lakhs forty four thousand four hundred twenty two only) along with interest towards at the earliest.

Thanking you,

Yours truly

Copy to

1. Assistant Director of Agriculture H.R.D.
Sheshadri Road, Bangalore
2. Joint Director of Agriculture, Sheshasri ~~pxxx~~ Road,
Bangalore.

Bengaluru

Date: 5-6-23

From
M/s.Raja Agency
K2, M.G.Road,
Somwarpet,
Kodagu-571 236
Karnataka State
Rep by sole proprietor
Sri.M.C.Uthaiiah,

To

1. The Principal Secretary
Government of India,
Sansad Marg, Gokul Nagar,
Janpath, Connaught Place,
New Delhi Delhi-110001

2. The Principal Secretary
Government of India,
Department of Agriculture,
Formers Welfare,
Sansad Marg, Gokul Nagar,
Janpath, Connaught Place,
New Delhi Delhi-110001.

Dear Sir/Madam,

Sub: Release of your share of subsidy amount to the Agricultural Department, Government of Karnataka, to pay your part of the subsidy amount to the suppliers of the agricultural sprinkler equipments. To the M/s.Raja Agency for the year 2012-2014 amounting to Rs.27,44,422/- with interest for your authorities part of the share is pending.

1. Your authorities along with the Government of Karnataka have given subsidy to the formers of Karnataka for purchasing the agricultural equipments.

2. That the Government of Karnataka had prepared list of formers who are eligible for the subsidy to the agricultural sprinkler equipment and handed over the list to the manufacturers of the agricultural sprinkler equipment who intern supply the said equipment through their sub-dealers.



3. That the sub-dealers of respective places used to supply equipments to the formers. M/s.Raja Agency, Kodagu District being the sub-dealer of Premier Irrigation Agre-Tech had supplied irrigation (sprinklers) equipments to the formers of the Kodagu District, Karnataka for the year 2012-2013 & 2013-2014.
4. Your authorities and the Government of Karnataka has to pay the subsidy amount of Rs.51,09,989/- to the M/s.Raja Agency. Out of which, subsidy share of the Government of Karnataka amounting to Rs.23,65,562/- has been released already to M/s.Raja Agency through proper channel but share of your authorities/Central Government amounting to Rs.27,44,422/- is yet to be released through proper channel to M/s.Raja Agency, since 2012-2014.
5. That the Director of Agricultural Department, Government of Karnataka, reveled in their official communication that, their part of the subsidy amount had been released through proper channel to the respective agencies but the part of the subsidy amount, from the Government of India is yet to be received by Government of Karnataka, to release the part of the subsidy amount of the Central Government to the authorized agencies through proper channel.
6. That the proprietor of M/s.Raja Agency was waiting till now, as per the Agricultural Authorities of Government of Karnataka as the amount has to come from the Government of India for Central Government subsidy share amount to release. The Proprietor of M/s.Raja Agency approached many times to the Agricultural Authorities of Government of Karnataka requesting to release the due amount of Rs.27,44,422/- with interest of 18% per annum, but was told that, the Agricultural Authorities of Government of Karnataka yet to receive the share of the subsidy amount of the Central Government to release the same to the agricultural sprinkler equipment suppliers.

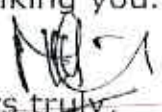


7. That the Proprietor of M/s.Raja Agency supplied materials on time to the formers taking financial aid from the financial institutions and interest is mounting day by day and now the proprietor is suffering a lot due to non-receipt of the invested money for supply of agricultural sprinkler equipment. The Government of Karnataka have released their part of the subsidy amount through proper channel to M/s.Raja Agency, but your authorities share of the subsidy amount yet to be received by the Government of Karnataka, Agricultural Department, in order to release your part of subsidy share amount to the suppliers of agricultural equipments through proper channel.

8. The copy of the internal communication between the officers of Agricultural Department, Government of Karnataka including the chart showing the part of the shares of the State and Central Government is produced for your kind reference. The proprietor of M/s.Raja Agency also produced representations made by him to the Agricultural Authorities of the Government of Karnataka.

Therefore, the proprietor of M/s.Raja Agency request your authority to take forthwith suitable action for releasing your part of the subsidy amount to the Government of Karnataka, Agricultural Department, in respect of supply of agricultural equipments (sprinklers), so that, the Government of Karnataka will be able to release your part of the subsidy amount to the suppliers, otherwise the proprietor has no choice but to approach the appropriate Court for necessary reliefs.

Thanking you.


Yours truly,
(M.C.Uthaiah)
Proprietor of
M/s.Raja Agency

Copy to

1. The Principal Secretary
Department Agriculture,
Vidhana Soudh,
Bengaluru-560 001

2. The Director of Agriculture (HRD),
Sheshadri Road,
K.R.Circle,
Bengaluru-560 001

3. The Director of Agriculture
Commissionerat of Sericulture,
Sheshadri Road,
K.R.Circle,
Bengaluru-560 001

4. The Director of Agriculture
Sheshadri Road,
K.R.Circle,
Bengaluru-560 001

Nag

RK601776601IN IVR:9275601776601
RL HIGHCOURT S.O (560001)
Counter No:1,05/06/2023,15:59
To:THE DIRECTOR OF AGRICULTURE..
PIN:560001, Bengaluru G.P.O..
From:N C UTHAIAN,SOMMARPET
Wt:78gms
Amt:40.00(Cash)
<Track on www.indiapost.gov.in>
<Dial 18002666868> <Wear Masks, Stay Safe>



RK601776605IN IVR:9275601776601
RL HIGHCOURT S.O (560001)
Counter No:1,05/06/2023,15:59
To:THE DIRECTOR OF AGRICULTURE..
PIN:560001, Bengaluru G.P.O..
From:N C UTHAIAN,SOMMARPET
Wt:74gms
Amt:40.00(Cash)
<Track on www.indiapost.gov.in>
<Dial 18002666868> <Wear Masks, Stay Safe>



RK601776596IN IVR:9275601776596
RL HIGHCOURT S.O (560001)
Counter No:1,05/06/2023,15:59
To:THE PRINCIPAL SECRETARY..
PIN:110001, New Delhi GPO
From:N C UTHAIAN,SOMMARPET
Wt:78gms
Amt:40.00(Cash)
<Track on www.indiapost.gov.in>



RK601776619IN IVR:9275601776619
RL HIGHCOURT S.O (560001)
Counter No:1,05/06/2023,15:59
To:THE PRINCIPAL SECRETARY..
PIN:110001, New Delhi GPO
From:N C UTHAIAN,SOMMARPET
Wt:78gms
Amt:40.00(Cash)
<Track on www.indiapost.gov.in>
<Dial 18002666868> <Wear Masks, Stay Safe>



RK601776602IN IVR:9275601776602
RL HIGHCOURT S.O (560001)
Counter No:1,05/06/2023,15:59
To:THE DIRECTOR OF AGRICULTURE..
PIN:560001, Bengaluru G.P.O..
From:N C UTHAIAN,SOMMARPET
Wt:78gms
Amt:40.00(Cash)
<Track on www.indiapost.gov.in>
<Dial 18002666868> <Wear Masks, Stay Safe>



RK601776577IN IVR:9275601776577
RL HIGHCOURT S.O (560001)
Counter No:1,05/06/2023,15:59
To:THE PRINCIPAL SECRETARY..
PIN:560001, Bengaluru G.P.O..
From:N C UTHAIAN,SOMMARPET
Wt:78gms
Amt:40.00(Cash)



ಕರ್ನಾಟಕ ಸರ್ಕಾರ

(ಕೃಷಿ ಇಲಾಖೆ)

ಸಂ:ಉಕ್ಕನಿ/ಕೃಷಿ&ಸೂನೀ/ಸೂನೀ/ಗು.ನಿ/2023-24

ಕೃಷಿ ಆಯುಕ್ತರ ಕಾರ್ಯಾಲಯ,

ಶೇಷಾದ್ರಿ ರಸ್ತೆ, ಬೆಂಗಳೂರು.

ದಿನಾಂಕ:10.07.2023.

ಇವರಿಗೆ:

ಜಂಟಿ ಕೃಷಿ ನಿರ್ದೇಶಕರು,

ಕೊಡಗು ಜಿಲ್ಲೆ.

ವಿಷಯ: 2012-13 & 2013-14ನೇ ಸಾಲಿನಲ್ಲಿ ಮೆ:ರಾಜ ಏಜೆನ್ಸಿ, ಸೋಮವಾರಪೇಟೆ, ಕೊಡಗು ಜಿಲ್ಲೆ ರವರು ವಿತರಿಸಿರುವ ತುಂತುರು ನೀರಾವರಿ ಘಟಕಗಳಿಗೆ ಕೇಂದ್ರದ ಪಾಲಿನ ಬಾಕಿ ಸಹಾಯಧನವನ್ನು ಪಾವತಿಸುವ ಕುರಿತು.

ಉಲ್ಲೇಖ: ಮೆ:ರಾಜ ಏಜೆನ್ಸಿ, ಸೋಮವಾರಪೇಟೆ, ಕೊಡಗು ಜಿಲ್ಲೆ ರವರ ಪತ್ರ ದಿ:28.04.2023 & 05.06.2023.

* * * * *

ಮೇಲ್ಕಂಡ ವಿಷಯ ಹಾಗೂ ಉಲ್ಲೇಖಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ, 2012-13 & 2013-14ನೇ ಸಾಲಿನಲ್ಲಿ ಮೆ:ರಾಜ ಏಜೆನ್ಸಿ, ಸೋಮವಾರಪೇಟೆ, ಕೊಡಗು ಜಿಲ್ಲೆ ರವರು ರೂ.51,09,989/- ಮೌಲ್ಯದ ತುಂತುರು ನೀರಾವರಿ ಘಟಕಗಳನ್ನು ಸರಬರಾಜು ಮಾಡಿದ್ದು, ಈ ವೈರಿ ರಾಜ್ಯದ ಪಾಲಿನ ಸಹಾಯಧನ ರೂ.23,65,562/- ಗಳನ್ನು ಮಾತ್ರ ಪಾವತಿಸಿದ್ದು ಕೇಂದ್ರದ ಪಾಲಿನ ರೂ.27,44,422/- ಗಳು ಪಾವತಿಗೆ ಬಾಕಿಯಿರುತ್ತದೆಂದು ಉಲ್ಲೇಖಿತ ಪತ್ರದಲ್ಲಿ ತಿಳಿಸಿ ಬಾಕಿ ಸಹಾಯಧನವನ್ನು ಕೊಡಲೇ ಪಾವತಿಸುವಂತೆ ಕೋರಿರುತ್ತಾರೆ. ಆದ್ದರಿಂದ, ಉಲ್ಲೇಖಿತ ಪತ್ರವನ್ನು ಈ ಪತ್ರದೊಂದಿಗೆ ಲಗತ್ತಿಸಿ ಕಳುಹಿಸುತ್ತಾ, ಸದರಿ ವಿಷಯದ ಕುರಿತು ವಿವರವಾದ ವರದಿ/ಮಾಹಿತಿ ಮತ್ತು ಅವಶ್ಯ ದಾಖಲಾತಿಗಳನ್ನು ತುರ್ತಾಗಿ ಸಲ್ಲಿಸಲು ಸೂಚಿಸಿದೆ.

ಕೃಷಿ ನಿರ್ದೇಶಕರು

ಪ್ರತಿಯನ್ನು:

➤ ಸರ್ಕಾರದ ಕಾರ್ಯದರ್ಶಿಗಳು, ಕೃಷಿ ಇಲಾಖೆ, ಬಹುಮಹಡಿಗಳ ಕಟ್ಟಡ, ಬೆಂಗಳೂರು ರವರಿಗೆ ಮಾಹಿತಿಗಾಗಿ ಸಲ್ಲಿಸಿದೆ.

✓ ಶ್ರೀ.ಎಂ.ಸಿ.ಉತ್ತಯ್ಯ, ಪ್ರೊಪೈಟರ್, ಮೆ:ರಾಜ ಏಜೆನ್ಸಿ, ಕೆ2, ಎಂ.ಜಿ.ರಸ್ತೆ, ಸೋಮವಾರಪೇಟೆ, ಕೊಡಗು ಜಿಲ್ಲೆ - 571 236 ರವರಿಗೆ ಮಾಹಿತಿಗಾಗಿ ರವಾನಿಸಿದೆ.

GOVERNMENT OF KARNATAKA

Department of Agriculture

No.Ukruni.Kru.yams Unii/Suni/
Kodagu/2023-24 Office of the Agricultural Director,
Sheshadri Road, Bengaluru
Dated: 10-07-2023

To

The Joint Director of Agriculture,
Kodagu District,

Sub: Regarding 2012-13 and 2013-14 on payment
of arrears of Central subsidy for Sprinkler
Irrigation Units distributed by M/s Raja
Agency, Somwarpet, Kodagu District.

Ref: Letter by M/s Raja Agency, Somowarpet,
Kodagu District dated: 28-04-2023 and
05-06-2023.

Regarding the above matter and reference, in the year
2012-13 and 2013-14, M/s Raja Agency, Somwarpet,
Kodagu District has supplied Rs.51,09,989/- worth of
Sprinkler units, out of which only Rs.23,65,562 of the
State share subsidy has been received and the Central
share is Rs.27,44,422/- in a letter stating that the
balance subsidy should be paid immediately as
requested. Herewith enclosed with this letter a detailed
report/information on the said subject and indicated the
requirements.

Sd/-

Agricultural Director.

Copy to:

Secretary to Government, Department of Agriculture,
Multi storied building, Bengaluru for information.

Sri M.C.Uttaiah, Proprietor, M/s Raja Agency, K.2,
M.G.Road, Somwarpet, Kodagu District.

RAJA AGENCY

M.G ROAD SOMWARPET KODAGU

AUTHORISED DEALER: PREMIER IRRIGATION MYSORE ROAD BENGALURU

Year	Outstanding Rs	Rate of Interest	Interest	Total Rs
2012-13	437080	18%	78675	515755
2013-14		18%	92835	608590
2014-15		18%	109546	718136
2015-16		18%	129264	847400
2016-17		18%	152532	999932
2017-18		18%	179988	1179920
2018-19		18%	212386	1392306
2019-20		18%	250651	1642921
2020-21		18%	295726	1938647
2021-22		18%	348956	2287603
2022-23		18%	411769	2699372



RAJA AGENCY

M.G ROAD SOMWARPET KODAGU

AUTHORISED DEALER: PREMIER IRRIGATION MYSORE ROAD BENGALURU

Year	Outstanding Rs	Rate of Interest	interest	Total Rs
2012-13	1182676	18%	212881	1395557
2013-14		18%	251200	1646757
2014-15		18%	296416	1943173
2015-16		18%	349771	2292944
2016-17		18%	412730	2705674
2017-18		18%	487021	3192695
2018-19		18%	574685	3767380
2019-20		18%	678128	4445508
2020-21		18%	800191	5245670
2021-22		18%	944220	6189890
2022-23		18%	1114180	7304070



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RAJA AGENCY

M.G ROAD SOMWARPET KODAGU

AUTHORISED DEALER: PREMIER IRRIGATION MYSORE ROAD BENGALURU

Year	Outstanding Rs	Rate of Interest	Interest	Total Rs
2012-13	411372	18%	74046	485418
2013-14		18%	87375	572793
2014-15		18%	103103	675890
2015-16		18%	121611	797551
2016-17		18%	143559	941110
2017-18		18%	169400	1110510
2018-19		18%	199892	1310402
2019-20		18%	235872	1546274
2020-21		18%	278330	1824604
2021-22		18%	328428	2153032
2022-23		18%	387546	2540578



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RAJA AGENCY

M.G ROAD SOMWARPET KODAGU

AUTHORISED DEALER: PREMIER IRRIGATION MYSORE ROAD BENGALURU

Year	Outstanding Rs	Rate of Interest	Interest	Total Rs
2013-14	638918	18%	115005	753923
2014-15		18%	135705	889629
2015-16		18%	160133	1049672
2016-17		18%	188957	1238719
2017-18		18%	222969	1461688
2018-19		18%	263104	1724792
2019-20		18%	310463	2035255
2020-21		18%	366346	2401601
2021-22		18%	432288	2833889
2022-23		18%	510100	3343989

